

1.

CASE #	CASE NAME	HEARING NAME
CVPS2203638	WHITLEY'S CONSTRUCTION CORPORATION VS BOTTOMLEY	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: A party served with an erroneous or irregular deposition notice may move to stay the deposition and quash the notice; the filing stays the deposition pending determination of the motion. (CCP § 2025.410(a), (c).) Any party or deponent may also move, before, during, or after a deposition, for a protective order to shield a party or deponent from unwarranted annoyance, oppression, or undue burden and expense. (CCP § 2025.420(a)–(b).) Available terms include a different time or place, specified terms and conditions, a different recording method, and limits on the topics of examination. (CCP § 2025.420(b)(2), (4), (5), (8), (10).)

The moving party bears the burden of establishing good cause, meaning that the burden, expense, or intrusiveness of the challenged method clearly outweighs the likelihood of discovering admissible evidence. (*Emerson Elec. Co. v. Sup. Ct.* (1997) 16 Cal.4th 1101, 1110.) The trial court has broad discretion to control discovery and to fashion relief that fits the circumstances. (*Id.* at 1107, 1110.) Independently, the trial court must restrict the frequency or extent of use of a discovery method if it determines that the discovery sought is unreasonably cumulative or obtainable from a more convenient, less burdensome, or less expensive source, or that the selected method is unduly burdensome or expensive. (CCP § 2019.030(a).)

CRC Rule 3.1010 authorizes any party to take an oral deposition by videoconference and permits the court to make any appropriate order in the specific action. (CRC Rule 3.1010(a), (c)–(d).)

Scope and Effect of the August 14, 2026 Ruling:

The threshold question is what the August 14, 2026 ruling required. At the hearing, defense counsel expressly asked that the reopened depositions be ordered remote. (Harnik Decl. ¶ 3, Ex. A at 10:5–9.) The Court then framed the disposition as “two depositions of one hour each **may** be done through Zoom,” to be completed by the end of the month. (*Id.*, Ex. A at 11:12–17 [emphasis added].) The minute order captures the length and deadline but is silent on method. (Minute Order dated Aug. 14, 2026 [“Depositions of 1 hour each to be done by end of month.”].)

The Bottomleys read “may” as the Court’s answer to their request that the depositions be ordered remote, and observe that under CRC Rule 3.1010(a), WCC would not have needed any judicial authorization simply to elect a videoconference format itself. WCC, on the other hand, reads “may” as permissive, arguing the Court limited only length and subject matter and left method to the noticing party.

As a matter of ordinary usage, “may” denotes permission rather than mandate, and the Court did not say “shall” or otherwise foreclose an in-person format. The stronger reading is that the ruling authorized, without compelling, Zoom depositions. That reading, however, does not dispose of the motion. Even if the August 14 ruling was permissive on method, the Court retains authority under CCP § 2025.420 to enter a protective order on an independent showing of good cause.

Good Cause for a Protective Order

The Bottomleys have made the required showing. The noticed deposition location is WCC's counsel's Riverside office, approximately 2.5 to 3 hours of round trip travel from the Bottomleys' counsel's Indian Wells office. (Harnik Decl. ¶ 6.) The notices set Susan Bottomley at 9:00 a.m. and Richard Bottomley at 3:00 p.m., producing an approximately six-hour interval between two examinations whose combined on-the-record time cannot exceed two hours under the August 14 ruling. (*Id.* at ¶ 5, Exs. C, D.) The examinations are narrowly limited to the newly pled economic duress defense addressing three change orders. On this record, the burden of a full day, in-person format for two brief, separate examinations clearly outweighs the limited benefit of physical presence, and Zoom is a less burdensome alternative to the noticed in-person format within the meaning of section 2019.030. WCC has not identified any evidentiary or practical purpose served by in-person attendance that Zoom cannot serve.

The good cause showing is further reinforced by intervening medical facts. Mrs. Bottomley fell on August 17, 2026, underwent emergency hip replacement surgery on August 18, 2026, and has been medically restricted from long distance travel. (Harnik Suppl. Decl. ¶¶ 4–5.) Her home is a short drive (approximately 15 minutes) from her counsel's Indian Wells office, and any in-person appearance would require approximately 2.5 to 3 hours of round trip travel, which her post-surgical restriction on long distance travel precludes. (*Id.* at ¶ 6, Ex. C.) On this record, requiring Mrs. Bottomley to appear in person in Riverside is not merely burdensome but medically inadvisable, and in-person appearances are not warranted as to either deponent.

WCC's document production concerns do not change the analysis. Whether the Bottomleys must produce further documents or identify by Bates number which prior production items are responsive to the deposition requests is a distinct dispute governed by section 2031.280 and properly addressed through the meet-and-confer, and if necessary, a motion to compel. (See CCP § 2031.280.) It provides no reason the testimony itself must be taken in person.

The One-Hour Limit and Scheduling:

The August 14 ruling expressly limited each deposition to one hour. The notices, however, state that each deposition will proceed to 5:00 p.m. and, if not completed, will continue "to the next available date . . . until complete." (Harnik Decl. ¶ 5, Exs. C, D.) That language is facially inconsistent with the Court's one-hour cap and, as noticed, would permit examinations well in excess of what the Court authorized. The six-hour scheduling gap likewise serves no articulated purpose and adds to the burden without any benefit.

A protective order that (i) fixes the format as Zoom, (ii) confirms the one-hour cap as sixty minutes of on-the-record examination time exclusive of reasonable breaks, and (iii) requires the depositions to proceed consecutively (or with only a brief interval) on a mutually agreeable date within 15 days of this order, is warranted and appropriate under section 2025.420(b).

Document Identification:

WCC argues that the Bottomleys have refused to produce or identify by Bates number the documents responsive to the deposition requests, and characterizes that refusal as discovery misconduct under section 2023.010(f). The Bottomleys respond that responsive documents were included in their earlier productions, and that WCC conflates the inspection demand procedure under section 2031.010 *et seq.*, which requires an

advance verified response, with the deposition production procedure under section 2025.220, under which responsive documents are produced at the deposition rather than in advance.

The parties' dispute over which discovery procedure applies is not resolved here. Whether WCC is entitled to a verified written response identifying documents by Bates number in advance of the depositions is a question for the section 2031 procedure that WCC has opened by serving parallel inspection demands. (Harnik Suppl. Decl. ¶ 2, Exs. A, B.) What the Discovery Act requires is that any responsive documents not previously produced shall be produced at the depositions. (CCP §§ 2025.220(a)(4), 2025.280(a).) Nothing in this order resolves any dispute over the sufficiency of the Bottomleys' document production or responses, which the parties may address, if necessary, through the ordinary discovery process.

Sanctions:

Monetary sanctions are mandatory under CCP § 2025.420(h), against a party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless the court finds substantial justification or that other circumstances make the award unjust. Substantial justification means a justification that is clearly reasonable because it is well grounded in both law and fact. (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) Section 2023.010 identifies as a misuse of the discovery process the use of a discovery method in a manner or to an extent that causes unwarranted annoyance or undue burden and expense, and section 2023.030 authorizes monetary sanctions against a party engaging in such conduct.

Applied here, WCC is the party that unsuccessfully opposed the motion. Its interpretive position on the word "may" was not frivolous, but that argument does not answer the good cause showing. WCC's own conduct after the ruling—noticing the depositions in person in Riverside, with a six-hour gap between the two examinations and open-ended "until complete" continuation language exceeding the one-hour cap—is the conduct that necessitated the motion. WCC's meet-and-confer offer to proceed remotely was conditioned on additional examination time beyond the Court's one-hour limit, which would have required the Bottomleys to give up the one-hour limit the Court had ordered. An offer on those terms does not amount to substantial justification.

The Bottomleys request \$3,672.50, comprising associate time (2.5 hours incurred plus 1 anticipated hour) at \$475 per hour, totaling \$1,662.50, lead-counsel time (2 hours incurred plus 1 anticipated hour) at \$650 per hour, totaling \$1,950.00, and a \$60 filing fee. (Harnik Decl. ¶¶ 14–15.) The request is adequately supported but high given the limited scope of the motion and the non-frivolous question WCC raised about the meaning of the August 14 ruling.

WCC's cross-request for \$2,600 under CCP § 2025.420(h) is denied. (Zemming Decl. ¶ 6.) WCC is not the prevailing party on the motion, and the statute authorizes sanctions only against the party that unsuccessfully makes or opposes a protective order motion.

Defendants/Cross-Complainants Motion to Stay and Quash Deposition Notices; For a Protective Order GRANTED.

The Protective Order shall be as follows:

- The reopened depositions of Richard A. Bottomley and Susan G. Bottomley shall proceed by Zoom.
- Each deposition is limited to sixty minutes of on-the-record examination time, exclusive of reasonable breaks.
- The depositions shall proceed consecutively, or with only a brief interval, on a mutually agreeable date within 15 days of this order.
- Examination is limited in subject matter to the newly pled affirmative defense economic duress as to the three change orders at issue.

Defendants/Cross-Complainants Request for Sanctions GRANTED in PART.

Sanctions awarded in the amount of \$2500, payable to counsel for Defendants/Cross-Complainants Richard and Susan Bottomley within 30 days of this order.

Plaintiff's request for Sanctions DENIED.

Trial Setting Conference remains set for 11.20.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2604326	SONNENBLICK HOLDINGS, LLC VS H.N. AND FRANCES C. BERGER FOUNDATION	HEARING RE: DEMURRER ON COMPLAINT OF SONNENBLICK HOLDINGS, LLC BY H.N. AND FRANCES C. BERGER FOUNDATION

Tentative Ruling:

Breach of Contract – 1st Cause of Action:

“A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom.” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal. App. 4th 1004, 1031.) A contract will be enforced if it is sufficiently definite for the court to ascertain the parties' obligations and to determine whether there has been a breach. (*Bustamante v. Intuit Inc.* (2006) 141 Cal. App. 4th 199, 209.) To plead a cause of action based on a written contract, a plaintiff may attach a copy of the written contract and incorporate it by reference or plead the terms verbatim or the legal effect of the contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

The JVA is attached to the Complaint as Exhibit A. Section 2b of the JVA sets out the two-closing format for the deal and explains the conditions precedent for the initial and final closing. Before the final closing could occur, the JVA set out six conditions precedent, including that Sonnenblick-Palm Desert, LLC will have been established and be in good standing with the State of California and that Developer will have obtained a binding commitment for the construction loan as corroborated by one or more binding written loan agreements. (Comp. Ex. A § 2b(b)(a)(i)-(vi).) Additionally, prior to the final closing date, the parties needed to obtain the Coachella Valley Water District's approval for the project development and increase power supply to the project. (Comp. Ex. A §2c(a) & (b).)